

Brussels, September 15, 2023 – Following the binding decision of the European Data Protection Board, the Irish Data Protection Authority issued a final decision determining that TikTok Technology Limited (TikTok) violated the principle of fairness under the General Data Protection Regulation when processing personal data relating to children aged 13 to 17 years. The decision of the European Data Protection Board was published on August 2, 2023, and covers TikTok's processing activities between July 31 and December 31, 2020.

Anu Talus, Chair of the European Data Protection Board, stated: "Social media has a responsibility to avoid presenting choices to users, especially children, in an unfair manner – particularly if such choices could encourage individuals to make decisions that violate their right to privacy. Privacy-related options should be presented in an objective and neutral manner, avoiding any form of misleading or manipulative language or design. With this decision, the European Data Protection Board once again clearly indicates that digital actors must be particularly cautious and take all necessary measures to protect children's data protection rights."

In its binding decision, the European Data Protection Board analyzed the technical solutions implemented by TikTok in the context of two pop-up notifications displayed to children aged 13 to 17 years: the registration pop-up notification and the video posting pop-up notification. The analysis found that neither of these two pop-up windows offered users options in an objective and neutral manner.

In the registration pop-up notification, children were encouraged to select a public account by pressing a button on the right labeled "Skip," which would have a cascading effect on the child's privacy on the platform, triggering a series of events that could have negative consequences for the protection of children's personal data (for example, commenting on videos created by children).

In the video posting pop-up notification, children were encouraged to click on "Publish Now," displayed in bold, darker text on the right side, instead of the lighter button for "Cancel." Users who wanted to set their post as private first had to select "Cancel" and then seek privacy settings to switch to a "private account." Therefore, users were encouraged to choose the default settings, and TikTok made it more difficult for them to make decisions that would protect their personal data. Furthermore, the consequences of the various options offered were unclear, especially for minor users. The European Data Protection Board confirmed that data controllers should not make it more difficult for data subjects to adjust privacy-related settings and limit processing.

Additionally, the European Data Protection Board determined that as a result of the practices in question, TikTok violated the principle of fairness in accordance with the General Data Protection Regulation. Therefore, the European Data Protection Board instructed the Irish Data Protection Authority to include a conclusion regarding this additional violation in its final decision and to order TikTok to comply with the provisions of the General Data Protection Regulation by eliminating such technical solutions (data protection by design).

The European Data Protection Board also assessed whether the age verification measures applied by TikTok between July 31 and December 31, 2020, were compliant with the requirements of technical data protection (Privacy by Design) (Article 25(1) of the GDPR). The European Data Protection Board expressed serious doubts about the effectiveness of the age verification measures that TikTok applied during that period, especially considering the seriousness of the risks for the large number of children using the service. Among other things, the European Data Protection Board found that the age limit set by TikTok to prevent access to the platform by minors under 13 years could easily be circumvented and that the measures applied after users gained access to TikTok were not implemented in a sufficiently secure manner.

Based on the available information in the context of this dispute resolution procedure, the European Data Protection Board concluded that during that period it did not have sufficient information, particularly in the context of the use of the latest advancements, to specifically assess TikTok's compliance with Article 25(1) of the GDPR during that period. However, taking into account the serious doubts about the effectiveness of the measures chosen by TikTok, the European Data Protection Board requested the Irish Data Protection Authority to consider this in its final decision.

The final decision of the Irish Data Protection Authority includes the legal assessment presented by the European Data Protection Board in its binding decision. This decision was made based on Article 65(1)(a) of the General Data Protection Regulation after the Irish Data Protection Authority, as the lead supervisory authority, initiated a dispute resolution procedure regarding the complaints of some concerned supervisory authorities. These complaints outlined the scope of the previously described decision of the European Data Protection Board.

The final decision of the Irish Data Protection Authority also includes a legal assessment that was not the subject of complaints from the concerned supervisory authorities, such as the determination that the default settings were contrary to the principles of technical and integrated data protection, data minimization, and transparency. In addition to a warning and an order for compliance, the Irish Data Protection Authority imposed a fine of 345 million euros.